

25PSCV03636 25PSCV03636

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 25PSCV03636 Hearing Date: July 17, 2026 Dept: H

ODK Capital, LLC

v. Teach Hair Inc., et al.,

Case No. 25PSCV03636

ORDER

CONTINUING HEARING ON MOTION TO SET ASIDE ENTRY OF DEFAULT AND ORDER TO SHOW CAUSE
RE: DEFAULT JUDGMENT

The hearing on Defendant Crystal

Perez's Motion to Set Aside Entry of Default and the Order to Show Cause Re: Default Judgment is CONTINUED to August 21, 2026, at 9:30 a.m. [see below].

Background

Plaintiff

ODK Capital, LLC ("Plaintiff") alleges as follows:

On

June 24, 2024, Teach Hair Inc. ("THI") entered into a Business Loan and Security Agreement and accompanying supplement ("BLSA") in favor of Celtic Bank ("Celtic"), wherein Celtic agreed to loan monies to THI in exchange for repayment. Crystal Perez ("Perez") contemporaneously executed a personal guaranty. Celtic subsequently assigned the BLSA to Plaintiff. TSI has failed to make payments due.

On

October 8, 2025, Plaintiff filed a complaint, asserting causes of action against THI and Perez for: (1) Breach of Contract and (2) Breach of Guaranty.

On

December 10, 2025, THI's and Perez's defaults were entered.

An

Order to Show Cause Re: Default Judgment is set for July 17, 2026.

Discussion

THI and

Perez move the Court for an order, pursuant to Code of Civil Procedure section 473.5, setting aside their respective defaults.

The

Court observes that on January 30, 2026, Perez filed a four-page document entitled "Notice of Motion and Motion to Set Aside Entry of Default" ("Notice"); no hearing date was listed (although the attached reservations page identified a June 2, 2026 reserved hearing), nor was the Notice accompanied by a proof of service. On May 19, 2026, Plaintiff filed a "Response to Defendant Crystal Perez's Notice of and Motion to Set Aside Entry of Default" ("Response"), representing therein that "Defendant's Notice of and Motion to Set Aside Entry of Default ('Defendant's Notice') is procedurally noncompliant and unsupported, and it consists only of a notice with no related filings despite making representations that it is based on a memorandum, declaration, and exhibits. The Court docket shows no such filings, nor have any been provided to Plaintiff." (Resp., 1:25-2:4.)

The

Court's record reflects that on May 28, 2026, Perez rescheduled the hearing on this instant motion to September 30, 2026; it does not appear that Perez ever provided notice of same. During the June 2, 2026 Order to Show Cause Re: Default Judgment (which Perez did not attend), the Court observed as follows:

"Defendant

Crystal Perez's motion to set aside default was initially calendared for today's date, but Defendant Perez moved the hearing to 9/30/26. The Court sees no reason to delay the motion to September[.] On the Court's own motion, the Hearing on Motion to Set Aside/Vacate Default (CCP 473.5) scheduled for 09/30/2026 is advanced to this date and continued to 07/17/2026 at 09:00 AM in Department H at Pomona Courthouse South.

The

Court confirms, consistent with Plaintiff's opposition, that the only filing reflected on the docket in connection with that motion is a four-page document, 'Notice of Motion and Motion to Set Aside Entry of Default.' The Court did receive a courtesy copy of a two-page memorandum of points and authorities, a 57 page declaration of Crystal Perez, and a one-page proposed order. However, there is no indication those documents were filed or served on Plaintiff."

The

Court, on that date, directed Perez "to file and serve those documents forthwith and by no later than June 9, 2026," directed that opposition and reply papers be filed in compliance with Code of Civil Procedure section 1005, subdivision (b) and directed Plaintiff to give notice.

The

Court observes that Perez has not filed any of the aforementioned documents referenced in its June 2, 2026 minute order, to date; that said, the Court also notes that Plaintiff filed a proof of service on July 1, 2026, reflecting that Perez had been mail-served on June 30, 2026 from Atlanta with a "Minute Order/Notice of Hearing June 17, 2026 at 8:30 am." [FN] Plaintiff's notice to Perez is insufficient under the circumstances, inasmuch as it circumvented Perez's opportunity to provide compliant documents "by no later than June 9, 2026." The Court admonishes Plaintiff's counsel in this regard.

The

Court will continue the hearing, to August 21, 2026, at 9:30 a.m. Perez is directed to file and serve the two-page memorandum of points and authorities, the fifty-seven page declaration of Crystal Perez, and one page proposed order identified in the Court's June 2, 2026 minute order forthwith and by no later than July 24, 2026. Again, any opposition and reply papers are to be filed per Code.

The

Court will continue the Order to Show Cause Re: Default Judgment scheduled for July 31, 2026 to this same date.

Plaintiff

is to provide notice to Perez no later than five calendar days from the date of

this hearing and to file proof of service of same forthwith.

[FN] The hearing was on June 2,
2026, not June 17, 2026.